

The National Biodiversity Authority (Salary, Allowances and Conditions of Service of Chairperson and other Members) Rules, 2003

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The National Biodiversity Authority (Salary, Allowances and Conditions of Service of Chairperson and other Members) Rules, 2003

Rule

THE-NATIONAL-BIODIVERSITY-AUTHORITY-SALARY-ALLOWANCES-AND-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-OTHER-MEMBERS-RULES-2003 of 2003

Published on 1 October 2003

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The National Biodiversity Authority (Salary, Allowances and Conditions of Service of Chairperson and other Members) Rules, 2003

Published vide Notification No. G.S.R. 779(E), dated 1st October, 2003

Ministry of Environment and Forests

G.S.R. 779(E). - In exercise of the powers conferred by the Sub-section (1) read with clause (a) of Sub-section (2) of

Section 62 of the Biological Diversity Act, 2002 (18 of 2003

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the National Biodiversity Authority (Salary, Allowances and Conditions of Service of Chairperson and other Members) Rules, 2003.

(2)

They shall come into force on the 1st day of October, 2003.

2.

Definitions.

- In these rules, unless the context otherwise requires :-

(a)

"Act" means the Biological Diversity Act, 2002 (18 of 2003

);

(b)

"Authority" means the National Biodiversity Authority established under Sub-section (1) of Section 8;

(c)

"Chairperson" means the chairperson of the Authority;

(d)

"Member" means the Member of the Authority;

(e)

"Section" means a Section of the Act.

3.

Tenure.

- A Chairperson of the Authority shall hold office as such for a period of three years from the date on which he enters upon his office but shall be eligible for reappointment for another term of three years :

Provided that no Chairperson shall hold office as such after he attains the age of sixty five years, whichever is earlier.

4.

Pay and Allowances of Chairperson.

(1)

A Chairperson shall be entitled to a fixed pay of Rs. 26,000 per month. In case of retired person is appointed as Chairperson, his pay shall be fixed in accordance with the orders of the Central Government as applicable to such persons.

(2)

A Chairperson shall be entitled to such allowances, leave, pension, provident fund, house and other perquisites etc. to be decided by the Central Government from time to time.

5.

Term of Office and Allowances of Non-official Members.

(1)

Every non-official member of the Authority shall hold his office for a term not exceeding three years at a time from the date of publication of his appointment in the Official Gazette.

(2)

Every non-official member attending the meeting of the Authority shall be entitled to sitting allowance, travelling expenses, daily allowance and such other allowances as are applicable to non-official member of commissions and committees of the Central Government attending the meeting(s) of such Commissions or Committees.

6.

Filling up Vacancies of non-official member.

(1)

A non-official member of the Authority may resign his office at any time by giving in writing under his hand addressed to the Central Government and the seat of that member in the Authority shall become vacant.

(2)

A casual vacancy of a non-official member in the Authority shall be filled up by a fresh nomination and the person nominated to fill the vacancy shall hold office only for the remainder of the term of the member in whose place he was nominated.

7.

Removal of the members of the Authority.

- No member of the Authority shall be removed from his office on any ground specified in Section 11, without a due and proper enquiry by an officer not below the rank of a Secretary to the Government of India appointed by the Central Government and without giving such member a reasonable opportunity of being heard.

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